

Workplace Investigation
HRM6030
Assignment 4
Tejasvini Kameswaran

Introduction

Conducting a workplace investigation into allegations of theft requires a structured, legally compliant, and unbiased approach. According to Hotfelder (2023), a well-executed investigation ensures fairness, protects employee rights, and mitigates legal risks. This interview plan follows best practices outlined in *The Employer's Legal Handbook* and integrates guidelines from the Society for Human Resource Management (SHRM) (2020). The goal is to establish facts, determine credibility, and ensure due process.

Steps in the Investigation Process

Step 1: Ensuring Confidentiality and Legal Compliance

Confidentiality is essential but not absolute. Employees involved will be informed that information will be shared only on a need-to-know basis (SHRM, 2020). Compliance with Title VII, the National Labor Relations Act (NLRA), and Massachusetts labor laws will be maintained throughout.

Step 2: Providing Interim Protection

If necessary, Employee X (accuser) and Employee Y (accused) may be temporarily reassigned or placed on administrative leave to prevent retaliation or further misconduct (Hotfelder, 2023). However, these measures must not imply guilt or constitute an adverse employment action.

Step 3: Selecting the Investigator

A neutral, experienced HR professional will conduct the investigation, ensuring no conflicts of interest exist (SHRM, 2020). Legal counsel may be consulted, particularly if termination is a possible outcome.

Step 4: Developing an Investigation Plan

- Review policies: Examine company theft policies, security protocols, and financial transaction records.
- Identify evidence sources: Surveillance footage, transaction logs, witness testimonies.
- List interviewees: Accuser, accused, witnesses, and relevant supervisors.
- Create a timeline: Prompt completion is crucial to maintaining credibility.

Step 5: Conducting Interviews

Each interview will be structured to gather facts while ensuring procedural fairness (Hotfelder, 2023).

Interview Questions and Justifications

For Employee X (Accuser)

1. "Can you describe the incident and explain how you became aware of the alleged theft?"
 - Establishes timeline, basis of suspicion, and potential biases.

2. "Have you personally observed Employee Y taking company funds, or are you basing this claim on indirect evidence?"
 - Differentiates between direct observation and speculation.
3. "Were there other employees who might have access to the missing funds?"
 - Prevents tunnel vision by considering alternative explanations.
4. "Do you have any documentation or evidence supporting your claim?"
 - Determines the strength of the allegation.
5. "Have you had any prior conflicts with Employee Y?"
 - Assesses potential bias or motivation behind the claim.

For Employee Y (Accused)

1. "Can you describe your job responsibilities, particularly regarding handling company funds?"
 - Establishes access level and scope of authority.
2. "Where were you on [date/time of the alleged theft]?"
 - Tests consistency and provides an alibi opportunity.
3. "Have you noticed any unusual financial discrepancies or irregularities in company records?"
 - Determines if they are aware of broader issues.
4. "Have you had any conflicts with Employee X that might have led to this allegation?"
 - Identifies possible ulterior motives.
5. "Are there any witnesses or documentation that can confirm your version of events?"
 - Assesses credibility and potential evidence in their favor.

Step 6: Evaluating Evidence and Making a Decision

After gathering statements and documents, credibility assessments will be conducted using consistency analysis, demeanor evaluation, and corroborative evidence review (SHRM, 2020). Findings will be reviewed with legal counsel to determine appropriate disciplinary action.

Step 7: Closing the Investigation and Reporting

- Notify both parties of the outcome while maintaining confidentiality.
- Take corrective action, if necessary, including disciplinary measures or policy updates.
- Document findings in a detailed report to protect against legal repercussions (Hotfelder, 2023).

Conclusion

A structured, legally sound investigation minimizes risks and ensures fairness. By following best practices, organizations can uphold workplace integrity while protecting employee rights.

References

Hotfelder, A. (2023). *The employer's legal handbook: How to manage your employees* (16th ed.). NOLO.

Society for Human Resource Management. (2020). *How to conduct an investigation*. SHRM. <https://www.shrm.org/ResourcesAndTools/tools-and-samples/how-to-guides/Pages/howtoconductaninvestigation.aspx>